

25STLC03491 25STLC03491

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-09-24

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Case Number: 25STLC03491 Hearing Date: September 24, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Strategic Funding

Source, Inc. dba Kapitus' Motion for Summary Judgment, or in the alternative, Summary Adjudication Against Defendant Abrahan Bravo is granted. Plaintiff is to file and serve a proposed judgment in accordance with this order within 20 days.

Order to Show Cause Re: Request for

Default Judgment Against Defendant BClean Services Professional Cleaning, Inc is scheduled for 10/15/2026 at 8:30 am in Department 26 at the Spring Street Courthouse.

Analysis:

On April 30, 2025, Plaintiff Strategic Funding Source, Inc. dba Kapitus ("Plaintiff") filed the instant action for breach of contract against Defendants BClean Services Professional Cleaning, Inc. ("Defendant BClean") and Abrahan Bravo ("Defendant Bravo"). On May 30, 2025, Defendants filed an Answer in propria persona. The Court ordered the Answer stricken as to Defendant BClean on October 12, 2025, due to its lack of proper legal representation. (Minute Order, 10/21/25.) The Court entered Defendant BClean's default on January 15, 2026. On March 18, 2026, the Court granted Plaintiff's Motion to Deem Requests for Admission Admitted against Defendant Bravo. (Minute Order, 03/18/26.)

On June 25, 2026, Plaintiff filed the instant Motion for Summary Judgment, or in the alternative, Summary Adjudication Against Defendant

Abrahan Bravo. The Motion was served on Defendant Bravo by first-class mail on the same day. No opposition has been filed to date.

Discussion

Plaintiff moves for summary judgment, or adjudication, on the cause of action for breach of contract (guaranty) pursuant to Code of Civil Procedure section 437c. On a motion for summary judgment or adjudication of a particular cause of action, a moving plaintiff must show that there is no defense by proving each element of the cause of action entitling the party to judgment on that cause of action. (Code Civ. Proc., § 437c, subd. (p)(1).) Then the burden shifts to the defendant to show that a triable issue of one or more material facts exists as to that cause of action or a defense. (Code Civ. Proc., § 437c, subd. (p)(1).) Additionally, in ruling on the Motion, the Court must view the “evidence [citations] and such inferences [citations], in the light most favorable to the opposing party.” (Intrieri v. Superior Court (2004) 117 Cal.App.4th 72, 81 [citing Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 843].)

Allegations in the Complaint

The Complaint alleges a cause of action for breach of contract against Defendant BClean, and a cause of action for breach of contract (guaranty) against Defendant Bravo, based on the following facts. On or about May 29, 2024, Plaintiff and Defendant BClean entered into a written Loan Agreement. (Compl., ¶6 and Exh. 1.) Defendant Bravo executed the Agreement on behalf of Defendant BClean, and in their individual capacity as personal guarantor of Defendant BClean's obligations under the Agreement. (Ibid.) In consideration of funds provided by Plaintiff, Defendant BClean promised to repay Plaintiff \$40,200 (“Repayment Amount”), plus fees and costs. (Ibid.) The Repayment Amount was to be paid by Defendant BClean through weekly payments of \$774 (“Payment”). (Ibid.) Defendant BClean defaulted under the Agreement. (Id.) As part of the Agreement, Defendant Bravo executed a written guaranty, unconditionally guaranteeing Defendant BClean's payment and performance. (Id. at ¶17.) Defendant Bravo failed, and continues to fail, to pay the sums due and owing to Plaintiff, in breach of the Guaranty. (Id. at ¶19.) As a result of Defendant Bravo's breach of the guaranty, Plaintiff has been damaged in the amount of \$24,556, plus other fees, costs and charges, as well as attorneys' fees and costs of suit, pursuant to the terms of the Agreement. (Id. at ¶21.)

Cause of Action for Breach of Contract (Guaranty)

The elements of a cause of action for breach of contract are

(1) the existence of contract; (2) plaintiff's performance or excuse for nonperformance; (3) defendant's breach (or anticipatory breach); and (4) resulting damage. (Wall Street Network, Ltd. v. N. Y. Times Co. (2008) 164 Cal.App.4th 1171, 1178.)

In support of the motion, Plaintiff presents the following

facts as undisputed. The parties entered into a Loan Agreement on or about May 29, 2024, pursuant to which Defendant BClean received a business loan of \$30,000.00 that it promised to repay through weekly payments. (Motion, Separate Statement, Fact Nos. 1-2, Carlson Decl., Exh. 1; Gibbs Decl., Exh. A, Nos. 1-12.) Under the Agreement, Defendant Bravo executed a personal guaranty ("Guaranty") unconditionally guaranteeing Defendant BClean's payment and performance. (Motion, Separate Statement, Fact No. 6; Carlson Decl., Exh. 1, p. 2; Gibbs Decl., Exh. A, p. 7.) The guarantor's obligations were due at the time of any breach of the Agreement by the borrower. (Motion, Separate Statement, Fact No. 7; Carlson Decl., Exh. 1, §3.2; Gibbs Decl., Exh. A at Exh. 1, §3.2.) Plaintiff performed its obligations under the Agreement by transferring the loan funds to Defendant BClean. (Motion, Separate Statement, Fact No. 8; Carlson Decl., Exh. 2; Gibbs Decl., Exh. A, Exh. 2, Nos. 11, 14-15.) Since about December 26, 2024, and thereafter, Plaintiff has been unable to debit the required payments from Defendant BClean's account. (Motion, Separate Statement, Fact No. 9; Carlson Decl., Exh. 2; Gibbs Decl., Exh. A, Exh. 2, Nos. 16-23.) Defendant Bravo has not paid all amounts owed under the Agreement and is in breach of the Guaranty. (Motion, Separate Statement, Fact No. 10; Carlson Decl., Exh. 2; Gibbs Decl., Exh. A, Exh. 2, Nos. 25-35.) Plaintiff incurred principal damages of \$24,556.00 as a result of the breach, and is entitled to an award of attorney's fees and costs. (Motion, Separate Statement, Fact No. 12; Carlson Decl., Exh. 2; Gibbs Decl., Exh. A, Exh. 1, § 3.3.)

This evidence carries Plaintiff's initial burden of proof

with respect to the cause of action for breach of the guarantee. The burden now shifts to Defendant Bravo to demonstrate the existence of a triable issue of material fact. However, no opposition has been filed to date.

Conclusion

Therefore, Plaintiff Strategic

Funding Source, Inc. dba Kapitus' Motion for Summary Judgment, or in the alternative, Summary Adjudication Against Defendant Abraham Bravo is granted. Plaintiff is to file and serve a proposed judgment in accordance with this order within 20 days.

Order to Show Cause Re: Request

for Default Judgment Against Defendant BClean Services Professional Cleaning, Inc is scheduled for 10/15/2026 at 8:30 am in Department 26 at the Spring Street Courthouse.

Moving party to give notice.